

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Probate Notes**

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**2025PRCE039122: IN THE MATTER OF ALLEN LEWIS MOSS  
06/23/2026 in Department J6  
Final Account and Report re First and Final Account and Report**

As of 6/17/26, no GC-020 has been filed. (Prob. Code, § 2621.)

Numerous financial statements provided to the Court do not list all mutual funds or stocks reported in the accounting for the period covering 5/23/25, 12/23/25, and 1/31/26. For example, for the Vanguard non-cash account #4648, the May 2025 statement provided does not show 200 shares of Vanguard Total Stock Market ETF (\$57,008) or 100 shares of SPDR Dow Jones Industrial Average ETF (\$41,633).

Some values (e.g. number of shares owned or their value or value of the account itself) in the financial statements do not match the figures given in the accounting, and there is no reconciliation provided. For example, Vanguard #7069 money market account value is \$266,607.38 in the accounting for 5/23/25 but the account statement shows \$265,841.23. No reconciliation is given as to how the account value was reached. Another example: the number of shares of mutual funds in #4836-1 for 1/31/26 do not all match the number of shares stated in the financial statement.

Petitioner is directed to serve and file a verified supplement addressing the foregoing issues.

Subject to statutory notice and the supplement, the Court will approve the first and final account and report. Approve \$37,480.50 in attorney fees and \$1,330.35 in costs reimbursement to counsel. Approve \$741.05 in cost reimbursement to Petitioner.

Approve distribution of half of the remaining funds in Vanguard acct. x6135 to Petitioner.

Petitioner states that the assets from Vanguard #7069 now #4836 that was transferred to Vanguard #4836 for the conservatee should first be distributed 100% to her. The December 2025 statement for this account appears to show that the transfer to #4836 occurred on 12/19/25. It appears to the Court that the transfer severed any joint tenancy in those assets. The conservatee died on 12/23/25. Thus, the funds transferred to #4836 belonged solely to the conservatee on his DOD. On what legal theory does Petitioner base her entitlement to the funds transferred to the conservatee on 12/19/25? In the

supplement, Petitioner is directed to provide authority demonstrating her entitlement if she wishes to pursue this claim.

Lastly, Petitioner seeks to collect the remaining estate by a small estate affidavit. She proposes to distribute the remaining estate equally to herself and Monique Peloso. If Ms. Peloso is also a successor to the decedent, she needs to execute the affidavit. Additionally, the affidavit fails to comply with Probate Code section 13101(d) and (f).